

HOUSE No. 3458

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to double poles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/6/2025</i>

HOUSE No. 3458

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 3458) of Tackey Chan relative to the use of double utility poles of distribution or telephone companies. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3152 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to double poles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 164 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out section 34B, and inserting in place thereof the following new
3 section:-

4 Section 34B. (a) A distribution company or telephone company engaging in the removal
5 of an existing pole and the installation of a new pole in place thereof that does not complete the
6 transfer of wires, all repairs, and the removal of the existing pole from the site within 180 days
7 from the date of the installation of the new pole shall pay a fine to the municipality where the
8 pole is located of \$10 per day for the first 30 days following the expiration of the said 180 days;
9 \$20 per day for the following 30 days thereafter; \$30 per day for the following 305 days
10 thereafter; and \$100 per day for the following days thereafter until the existing pole is removed;

provided, however, that for any approved commercial or industrial construction project, the completion of which is expected to take longer than 1 year, said company shall be required to remove such pole within 12 months from the date of installation of the new pole.

(b) The owner of such pole shall notify all other users of the starting date of such removal and installation work at least 72 hours prior to the commencement of such work. Said owner may impose a fine upon the user who has not removed their wiring and other attachments when said failure to remove is responsible for the immediate delay in the removal of the existing pole. No fine shall be imposed when the failure of a city or town to remove its police or fire alarm circuits or any similar municipal equipment is the cause of the immediate delay and no other work could be performed.

(c) A pole owner or user may petition the department or the department of telecommunications and cable for relief or exemption from any fines. Any fine imposed under this section shall not be recoverable through rates without approval by the department or the department of telecommunications and cable.

SECTION 2. Section 22D of chapter 166 of the General Laws, as so appearing, is hereby amended by inserting after the word “fine” in line 19 the following:- imposed by the municipality having jurisdiction in the area where work is to be performed.

SECTION 3. Section 22K of said chapter 166 is hereby amended by adding at the end thereof the following:- only with notification to the selectmen, councilors, aldermen or overseeing committee having jurisdiction within the city or town where the delay to work is being performed.

32 SECTION 4. Not later than January 1, 2027, the department of public utilities, in
33 consultation with the department of telecommunications and cable, shall adopt regulations for
34 the implementation of section 34B of chapter 164 of the General Laws.